



ASSOCIATION MANAGEMENT AGREEMENT

This **ASSOCIATION MANAGEMENT AGREEMENT** (the "Agreement") is made this ____ day of February 11, 2025, by and between The Douglas Place Long Plat Div 1 & Div 2 (the "Association") and **WINDERMERE MANAGEMENT BY EBRIGHT WIGHT, LLC** (hereinafter called the "Agent"), under which the Association appoints the Agent as its sole and exclusive managing agent to perform certain services on the Association's behalf pursuant to the terms and conditions set forth below. The Association and Agent shall collectively be referred to herein as the "Parties" or individually as a "Party."

ARTICLE I – DEFINITIONS

1.1 Capitalized terms in this Agreement shall be defined as set forth in the applicable Governing Law or, if not defined therein, then as set forth below:

- (a) "Agent" means Windermere Management By Ebright Wight, LLC.
- (b) "Association" means the condominium, homeowners', or other association as set forth above.
- (c) "Board" means the Association's board of directors or trustees (however named).
- (d) "Contract Documents" means (i) this Agreement, together with any and all exhibits or schedules thereto; (ii) the Governing Documents (to the extent the same are provided to Agent); and (iii) all properly executed modifications, amendments, and changes to the Governing Documents issued subsequent to the date of this Agreement, so long as Agent has concurred in writing if such changes alter Agent's rights or responsibilities under the Agreement.
- (e) "Founding Documents" shall mean and refer to the Association's (i) declaration of covenants and restrictions (however named); (ii) survey map and/or plans (however named) recorded against the Property; (iii) articles of incorporation, if applicable; and (iv) bylaws.
- (f) "Governing Documents" shall mean and refer to the Association's Founding Documents plus any resolutions, policies, rules and/or regulations adopted the Board.
- (g) "Governing Law" shall mean applicable Washington State laws which govern the Association, including, but not limited to, the Horizontal Property Regimes Act (Chapter 64.32 RCW), the Washington Condominium Act (Chapter 64.34 RCW), the Washington Homeowners' Association Act (Chapter 64.38 RCW), and/or the Washington Uniform Common Interest Ownership Act (Chapter 64.90 RCW).

(h) "Property" shall be as defined in the Founding Documents, but if not defined therein, shall mean and refer to the real estate and improvements thereon for which the Board is responsible under the Governing Documents.

(i) "Services" shall mean the services the Agent will perform for the Association pursuant to this Agreement as further detailed and described in Articles VI – X, below.

ARTICLE II – STANDARD OF CARE

The Agent shall perform the Services (i) in a sound manner consistent with prudent management techniques; (ii) in the Association's best interests; and (iii) in accordance with the Governing Documents and Governing Law.

ARTICLE III – ASSOCIATION'S COOPERATION

3.1 The Board shall appoint one of its members as a liaison (the "Liaison") with Agent. The Board shall designate the Liaison in writing, and may change the designated Liaison from time to time with written notice to the Agent. To the extent possible and practical, all communications with Agent shall be made by or through the Liaison. Notwithstanding the foregoing, the Agent shall communicate with members of the Board, its officers, and/or committee chairpersons in the exercise of those persons' specific duties or responsibilities.

3.2 The Board shall furnish Agent with a complete set of plans and specifications for the Property and its improvements, to the extent such are reasonably available.

3.3 The Board shall furnish Agent with any documents reasonably requested by Agent to assist Agent in providing the Services, including, but not limited to, a list of all owners in the Association.

ARTICLE IV – COMPENSATION

As compensation for the Services, the Board shall pay the Agent the base management fee as set forth on Schedule 1, attached hereto (the "Base Management Fee"). In addition to the Base Management Fee, the Board shall pay the Agent on a time and material fee basis for all services or tasks Agent performs which are not included in the Services, as set forth in the additional fees table set forth on Schedule 2, attached hereto (the "Additional Fees"). The Base Management Fee and any Additional Fees are collectively referred to herein as the "Fees". The Fees are subject to adjustment as set forth on Schedules 1 and 2. All Fees shall be paid on a monthly basis. The Agent is authorized to withdraw the Fees from the Association's accounts as such Fees come due and owing.

ARTICLE V – COMMENCEMENT AND TERMINATION

5.1. **Commencement and Term.** This Agreement shall commence on February 15, 2026 (the "Commencement Date"), and shall expire one (1) year thereafter January 31, 2027 (the "Term"). This Agreement shall automatically renew for successive one (1)-year terms unless either Party gives notice at least sixty (60) days prior to the expiration of the Agreement of its intention not to renew the Agreement.

5.2. **Termination for Convenience.** This Agreement may be terminated by either Party without cause upon sixty (60) days' written notice, with such termination to be effective at the end of a calendar month.

5.3 **Termination for Breach.** Either Party may terminate this Agreement for the other Party's breach after providing ten (10) days' prior written notice and notification to cure such breach.

ARTICLE VI – FINANCIAL MANAGEMENT

Agent's Services shall include assisting and/or advising the Board in all matters relating to income of any source and expenditures of any nature, under the following terms and conditions:

6.1. **Standards.** Unless the Agent is instructed otherwise by the Board of Directors:

(a) The accrual method of accounting shall be employed and expenses required by the Founding Documents to be charged to more than one (1) but fewer than all Owners shall be accounted for separately;

(b) Two (2) or more persons shall be responsible for handling cash to maintain adequate financial control procedures;

(c) Cash accounts of the Association shall be maintained in insured accounts in the name of the Association established and maintained to indicate the custodial nature thereof, and shall not be co-mingled with any other accounts. Any reserve funds shall be kept in one (1) or more segregated, interest-bearing accounts, and any transaction affecting such funds, including the issuance of checks, shall require the signature of at least two (2) officers or Board members and/or the Agent;

(d) The Agent shall not accept any remuneration from vendors, independent contractors, or others providing goods or services to the Association whether in the form of commissions, finder's fees, service fees, or otherwise. Any discounts received by the Agent for the same shall benefit and accrue to the Association;

(e) Any financial or other interest which the Agent may have in any firm providing goods or services to the Association shall be disclosed the Board before the Agent engages such firm; and

(f) Monthly financial reports shall be prepared for the Board.

6.2. **Collections.** Agent shall utilize commercially reasonable efforts to collect all general and special assessments as they become due and payable to the Association and all other amounts due to the Association from any source. The Board hereby authorizes Agent to request, demand, collect, and receive any and all charges or assessments due the Association which may at any time become due by way of legal process or otherwise as may be required for the collection of delinquent assessments. The Association agrees to designate an attorney for overdue collection activities related to accounts more than forty-five (45) days past due, or in lieu thereof, to accept Agent's designation of an attorney for collections. Attorneys' fees and related expenses shall be paid by the Association, notwithstanding the Association's right to

recover some or all of those expenses from delinquent owners pursuant to the Governing Documents.

6.3. Disbursements. From the funds collected and deposited in the Association account(s), Agent shall cause the following to be dispersed regularly and punctually according to procedures mutually agreed upon by the Association and Agent: (1) salaries and any other compensation due and payable to any employees of the Association or to independent contractors, accountants, attorneys, or other consultants hired pursuant to the authority herein contained; (2) any taxes payable; (3) fire and other insurance premiums; (4) the amounts specified in the approved operating budget for allocation to any reserve fund for replacements or to any other reserve accounts; and (5) sums otherwise due and payable as operating expenses in the approved operating budget or authorized under the terms of this Agreement or otherwise, including the Agent's Fees.

6.4. Financial Records and Reports. Agent, with the assistance of the Association's accountant, shall keep financial records sufficiently detailed to enable the Association to comply with Governing Law, including, but not limited to, any resale certificate requirements. The accrual method of accounting shall be employed and any expenses required by the Governing Documents to be charged to more than one (1) but fewer than all owners shall be accounted for separately. At minimum, such records may include:

(a) An "Income Statement" reflecting all income and expense activity for the preceding month on an accrual basis;

(b) An "Accounts Receivable" report reflecting the status of all accounts in an "actual" format;

(c) A "Balance Sheet" reflecting the financial condition of the Association on an un-audited basis;

(d) A "Budget Report" reflecting any actual or pending obligations which are in excess of budgeted amounts by an amount exceeding the budgeted operating amounts and any variances;

(e) A "Delinquency Report" listing all Unit Owners who are delinquent in paying Condominium assessments and describing the status of any actions to collect such assessments; and

(f) All canceled checks, bank statements, receipts and vouchers for expenses and other source documents for income and expenses, will be stored for up to seven years.

6.5. Budget Preparation. Agent shall assist the Board and the Association's treasurer prepare the Association's operating and capital budgets, including, but not limited to, the following:

(a) At least sixty (60) days before the start of the fiscal year, or at such other time as may be necessary to satisfy the requirements of the Association's Governing Documents and/or the Governing Law, Agent shall submit to the treasurer a baseline budget for the ensuing fiscal year. This proposed budget shall reflect prior years' financial history of the Association,

adjusted for inflation, and shall include an analysis of repair and maintenance needs, operating expenses, and any capital improvements anticipated for the period. Reserve fund recommendations shall also be included on an updated cost basis. Agent shall prepare one (1) baseline budget (including computer runs and narrative), as well as any revisions initiated internally, at no additional charge.

6.6. **Annual Budget and Variances.** The current fiscal year operating budget adopted by the Board shall serve as the supporting document for the schedule of assessments for the new fiscal year. The Budget shall also constitute the major control under which Agent shall operate, and there shall be no substantial deviations therefrom, excluding such expenses as utilities, fuel, license fees, insurance, and other expenses not within the control of Agent, except as may be approved by the Board. No expenses may be incurred or commitments made by Agent in the name of the Association in connection with the maintenance and operation of the Association significantly in excess of the amounts allocated to the various main classifications of expense in the approved budget, except as provided herein.

6.7. **Conformance.** Agent shall administer the Association's financial affairs in accordance with the provisions of policies adopted by the Board, except that there will be no change from the financial procedures described herein without the mutual written consent of Agent and Association.

ARTICLE VII – GENERAL ADMINISTRATION

Agent's Services shall include assisting the Board in all matters of administration, including, but not limited to, the following:

7.1. **Inventory System.** To the extent that the Association has goods and property of significant volume or value, Agent shall develop and maintain a personal and business property inventory of major items annually, and shall maintain appropriate accounting records on book of the depreciable items in the inventory.

7.2. **Files and Rosters.** Agent, with the assistance of the Association's secretary, shall compile and maintain the following records and documents:

- (a) The original or a photocopy of the recorded declaration of covenants and restrictions (however named) and each amendment thereto;
- (b) The Association's certificate of incorporation and a copy or duplicate original of the articles of incorporation, as filed with the secretary of state;
- (c) The Association's bylaws, and amendments thereto;
- (d) The minute books, including all minutes, and any separate book of resolutions maintained by the Association. Agent shall assist the Association in creating a separate, indexed book of resolutions if requested by the Board, for such reasonable compensation as may be negotiated for such purpose;
- (e) Any rules and regulations that have been adopted;

- (f) An inventory of the Association's tangible personal property;
- (g) A copy of the developer's plans and specifications utilized in the construction or remodeling of the development;
- (h) Insurance policies or copies thereof for the Association;
- (i) Copies of any certificates of occupancy that may have been issued for the development;
- (j) Any other permits issued by governmental bodies applicable to the development;
- (k) All written warranties that are still in effect for the Common Elements, or any other areas or facilities which the Association has the responsibility to maintain and repair, from the contractors, subcontractors, suppliers, and manufacturers, and all owners' manuals or instructions furnished with respect to installed equipment or building systems;
- (l) A roster of Owners and Eligible Mortgagees and their addresses and telephone numbers, if known;
- (m) Any leases to which the Association is a party; and
- (n) Any contracts to which the Association is a party.

Should individual Owners not willingly cooperate with the Association or Agent in providing information necessary to maintaining up-to-date records, any research costs necessary to accomplish the same shall be an additional Association expense.

7.3. Correspondence. Agent shall advise the Board in, or draft, general correspondence dealing with the Association's business matters between governmental officials, independent contractors, Owners, and other entities with which the Association or its representatives have a business relationship, and shall maintain a file thereof.

7.4. Administration of Rules. Agent shall assist the Board in the administration of the Governing Documents. Further, with advice of counsel as needed, Agent shall assist the Board in drafting resolutions, rules, and regulations. Agent, in accordance with Board-adopted policies, shall inform Owners and other residents who may be in violation of the Governing Documents, and shall take such enforcement actions as are consistent with Board policy, the Governing Documents, and the Governing Law.

7.5. Meeting Attendance. The Fee provided for in attached Schedule of Management Fees and Costs includes compensation for Agent's attendance at up to four (4) Board meetings annually and at one (1) general membership meeting annually. Additional meeting attendance can be arranged in accordance with the attached Schedule of Management Fees and Costs.

7.6. Expenditure Commitment Limits. Except for disbursements authorized in Section 6.3 above, Agent shall not incur expenses for any single item, repair, or replacement exceeding Two Thousand Dollars (\$2,000.00), unless specifically authorized by the Board in advance. Notwithstanding the foregoing, the Agent shall be entitled to exceed this spending limit in the

event of an emergency that poses a risk of personal or physical property injury, damage, or death, or as otherwise required to avoid suspension of any necessary services (utilities, access, etc.) to the Association (each an "Emergency Expenditure"). Agent shall provide a written report of any such Emergency Expenditure within a reasonable period of time after such expenditure.

7.7. **General Information – Report to the Board.** Agent shall inform the Board, on a periodic basis, of industry information and practices pertaining to associations, which come to Agent's attention.

7.8. **Operating Procedures.** From time-to-time, the Agent shall provide the Board with recommended standard procedures and policies for procurement and operations and other items relating to the operation of Association affairs.

7.9. **Insurance Administration.** Agent shall assist the Board and its qualified insurance broker in meeting the Board's obligation to maintain insurance required by this Agreement, the Governing Documents, and as dictated by prudent business practice. Agent shall diligently process all insurance claims for which the Association is responsible. Agent shall provide the Board with comprehensive and timely reports on all accidents, fires, and any and all insurance claims relating to the management, maintenance, and operation of the Property. The Board shall authorize any proof of loss or other claim statements prior to Agent submitting the same to an insurance company or agent.

7.10. **Required Filings and Reports by Agent.** Agent shall prepare for execution and filing by the Association:

(a) All forms, reports, and returns required by law in connection with unemployment insurance, disability benefits, social security, and other similar taxes now in effect or hereafter imposed, if any (but specifically excluding any income tax returns);

(b) Resale certificates, if required by Governing Law, within the required time period following receipt of a written request, together with the required fee from the selling owner; and

(c) Any required corporate reports.

7.11. **Meetings Administration.** Agent shall assist with the organization of all general membership meetings and in particular the Annual Meeting of the Association, including preparation of reports, selection of materials and procedures, securing necessary personnel, and providing technical supervision and support for meetings at which the general membership is to vote, and shall assist the Board in notifying Owners as required by the Governing Documents and Governing Law.

7.12. **Professional Services.** Agent shall retain, upon the direction of the Board, legal counsel and other consultants to assist the Association when necessary. Agent shall also retain, at the Association's expense, an accountant to prepare annual tax forms and to prepare quarterly and annual financial statements, along with the any annual audit required by the Governing Documents or Governing Law, and to provide other advice to the Association as needed.

ARTICLE VIII – PHYSICAL SYSTEMS MANAGEMENT

Agent's Services shall include the physical system management services set forth herein.

8.1. General Management. Agent shall assist and/or advise the Association's Board, employees, and contractors on all matters related to the maintenance of the Property, and specifically, cause the Property to be maintained according to standards established by Governing Law, the Governing Documents, and as otherwise directed by the Board. The standards and actions related thereto shall include the following:

(a) Except as approved by the Board or permitted herein, contractors shall be solicited pursuant to competitive bidding procedures and written specifications. Agent shall submit recommendations to the Board containing evaluations of the bids and their adherence to the specifications, information on past experience, and such other information as may be helpful to the Board in making final selection. The Board shall ratify all written contracts in the name of the Association, unless other provisions are made.

(b) Agent shall oversee the activities of all contractors, including, but not limited to, the receiving of certificates of insurance, copies of bonds, manufacturers' warranties, and releases of liens. Agent shall oversee enforcement the contractors' warranties. Specialized, "one-time" type activities (large capital improvement projects, for example) are not included in the Fee and will require payment of additional fees based upon prior negotiation with the Association.

(c) The Association may employ and sub-contract with contractors or vendors of its own choosing. However, in such cases, the Agent will be held harmless for the actions of such contractors and vendors. Agent will assist the Association in the performance of any such agreement, including making payments to the contractor/vendor pursuant to Board direction. Agent encourages the Association to retain only licensed and insured vendors who will name the Association as additional insureds under their general liability insurance policies.

8.2. Contract Supplies and Services Procurement. Agent shall develop and maintain comprehensive procurement procedures, including the creation of standard specifications for bids and procurement activities in matters of a routine recurring nature. Such matters shall include, as applicable, routine cleaning, painting, decorating, plumbing, electrical repair, carpentry, plastering, and other such normal maintenance and repair work as may be necessary, subject to any limitations imposed by the Board. Specifications for major capital repairs and replacements, capital improvements, or other work requiring certification by licensed professionals shall be developed at the expense of the Association. The exercise of any obligations and authority under the provisions of this Paragraph shall be in the name of the Association which shall be the sole beneficiary of any discounts, commissions, or rebates obtainable as a result of any such purchases.

8.3. Supervision. Agent shall supervise and update the Board on contractors performing routine maintenance and repair work. Supervision of contractors performing capital improvement projects work (such as repairs/rebuilds due to fire or other calamities or construction of new improvements) shall be subject to additional charges by Agent upon Board authorization.

8.4. **Preventive Maintenance Program.** Agent shall ensure any applicable manufacturers or contractors' warranties are transferred to the Association. Agent shall also establish and implement a preventive maintenance program for all major physical systems, as approved by the Board. Agent shall also establish and monitor a seasonal maintenance program for any common heating and cooling systems not only to ensure working operations, but to conserve utility consumption.

8.5. **Building Care.** Agent shall assure the cleanliness and good operable condition of all common areas and equipment, including, as applicable, central systems, light fixtures, fire extinguishers, and entry doors. Scheduled inspections shall be made of these items.

8.6. **Grounds Care.** Agent shall periodically inspect all exterior common areas, including landscaping improvements, to determine whether such are receiving adequate care and maintenance and take such measures as necessary to assure same. During the growing seasons, inspections may be done, to aid in maintaining high quality exterior common areas.

ARTICLE IX – ENFORCEMENT

Agent's Services shall include the enforcement services set forth herein.

Agent is authorized, upon advance consultation with the Board or its Liaison, to enforce all provisions of the Governing Documents and the Governing Law on behalf of and in the name of the Board, and to take all action necessary thereto, except the Agent shall not commence lawsuits without the Board's prior consent.

ARTICLE X – BOOKS, RECORDS, INSPECTION AND ANNUAL AUDIT

Agent's Services shall include the books, records, inspection, and annual audit services set forth herein.

10.1. **Books and Records.** Agent shall maintain a comprehensive system of office records, books, and accounts reflecting the activities and operation as set forth in this Agreement, and as required by Governing Law. Copies (which may be duplicated) of contracts, filings with public agencies, and financial books and accounts shall be maintained at the principal office of the Board. Originals of all records will be maintained by Agent; however, they shall be deemed the property of the Association, and shall be returned to the Association upon termination of this Agreement.

10.2. **Inspection.** The Association records, books, and accounts maintained either at the Association's offices or in Agent's offices shall be made available for inspection during normal business hours by any and all Owners or their authorized representatives as required by Governing Law and upon reasonable notice to Agent.

10.3. **Annual Audit.** Agent shall cooperate fully with the independent certified public accountant in the conduct of any annual audit required by the Governing Documents or Governing Law, including making all records, books, and accounts available for the accountant's inspection and review, and shall do such at no additional expense to the

Association; provided, however, that the audit is completed within ninety (90) days following the close of the fiscal year being audited.

ARTICLE XI – MISCELLANEOUS

11.1. Status of Agent. Agent shall be considered an agent of the Association. However, all legally binding instruments, specifically including, but not limited to, contracts, shall be executed by the President or Vice President of the Association unless Agent is expressly authorized by Board resolution to execute such instruments.

11.2. Defense and Indemnification. The Association shall indemnify, defend, and hold harmless the Agent, and its affiliates, respective shareholders, members, directors, managers, officers, employees, agents, attorneys, representatives, and assigns (individually and collectively, the “Agent Parties”), from and against any and all losses, damages, judgments, rulings, or settlements, and all reasonable costs, expenses, and attorneys' fees (collectively, “Damages”) related to or arising out of any and all claims or legal, administrative, or regulatory actions and proceedings asserted or brought against the Agent and/or the Agent Parties in connection with (a) the Agent's performance of the Services under the terms of this Agreement; (b) any act or omission of any Agent Parties pursuant to the express or implied direction of the Association; (c) any act or omission of any Agent Parties reasonably and in good faith believed to be in the best interests of the Association; (d) the operation, maintenance, physical condition, or ownership of the Property, or any alleged acts, omissions, or incidents occurring during or related to the Agent's Services under this Agreement; and (e) the Association's failure or refusal to comply with or abide by any Governing Document, Governing Law, rule, order, determination, ordinance, or law of any federal, state, or municipal authority of which Agent has timely advised the Association in writing; provided, however, that the foregoing indemnification shall not extend to (i) any settlement entered into by any Agent Parties without the Board's prior written consent, which consent shall not be unreasonably withheld, conditioned, or delayed; (ii) any Damages that are caused by such an Agent Parties' criminal acts, willful misconduct, gross negligence, or negligence when Agent is acting outside the course and scope of this Agreement; or (iii) from Agent's material breach of this Agreement. The provisions of this Section shall survive the termination of this Agreement.

11.3. Insurance. In addition to any insurance requirements set forth in the Governing Documents, the Association shall, at its sole cost and expense, maintain in full force and effect during the Term of this Agreement, and for a period of one (1) year thereafter, the following: (i) Commercial General Liability (“CGL”) Insurance with limits of no less than Two Million Dollars Per Occurrence and Two Million Dollars (\$2,000,000.00) in the aggregate on an occurrence basis (the “CGL Policy”); and (ii) Directors and Officers Liability Insurance with limits of no less than Two Million Dollars Per Occurrence and Two Million Dollars (\$2,000,000.00) on an occurrence basis in the aggregate (the “D&O Policy”). The foregoing liability insurance policies shall name Agent as an additional insured by way of a policy endorsement at least as broad as ISO Form CG 20 10. The defense and indemnification of the Agent as an “additional insured” will not be affected by any act or omission by the Association which might otherwise result in a forfeiture of said insurance. The Association shall provide Agent with insurance certificates

identifying Agent as additional insured and showing the amount of coverage to be furnished to Agent. If the Association maintains broader coverage and/or higher limits than the minimums required above, Agent requires, and shall be entitled to, the broader coverage and/or higher limits maintained by the Association. The Association's CGL Policy and D&O Policy shall be primary and non-contributory, and at least as broad as ISO CG 20 01 04 13 as respects to Agent and the Agent Parties. Any insurance or self-insurance maintained by Agent shall be in excess of, and not contributing with, the Association's policies. Each required insurance policy shall provide that coverage shall not be materially changed, amended, or canceled with respect to the Agent except upon thirty (30) days' prior written notice from the insurance company to the Agent. The Association grants the Agent and the Agent Parties a waiver of any right to subrogation which any insurer of the Association may acquire against Agent by virtue of the payment of any loss under such insurance. The Association shall obtain any endorsement(s) that may be necessary to affect this waiver of subrogation, but this provision applies regardless of whether Association has received such an endorsement from the insurer. The CGL Policy shall contain a separation of insureds provision such that the policy applies separately to each insured that is subject of a claim or suit. The CGL Policy shall not contain a cross-claim, cross-suit, or other exclusion that eliminates coverage by one insured against another.

11.4. Role of Agent. Agent's role is to assist the Board in the operation and administration of the Property and the Association. Agent shall at all times confer fully and freely with the Board in the performance of the Services.

11.5. Applicable Law and Disputes. This Agreement shall be construed in accordance with the laws of the State of Washington. The Parties agree that in the event of any dispute related to or arising hereunder, jurisdiction and venue shall lie solely and exclusively in Whatcom County, Washington. The Parties irrevocably waive their rights to federal court jurisdiction and trial by jury. The substantially prevailing party in any action to enforce any term or condition of this Agreement shall be entitled to an award of its reasonable costs and attorneys' fees.

11.6. Notice. Any notice, demand, request, consent, approval, or communication that either Party desires or is required to give to the other party shall be in writing addressed to the other Party at the addresses set forth below or such address as may have been specified by notifying the other Party of the change of address. Notice shall be deemed served on the date of emailing, actual delivery, or the first attempted delivery as shown on the return receipt if mailed with the United States Postal Service by certified mail, return receipt requested.

Association: Daniel Tucker
5576 Clearview Dr
Ferndale, WA 98248

E-mail: Daniel.tucker@outlook.com

Agent: Windermere Management By Ebright Wight, LLC
541 W. Bakerview Rd.
Bellingham WA 98226
E-mail: brandye@windmeremgt.com

11.7. Assignment, Merger and Consolidation. No assignment, either in whole or in part, of this Agreement, or the continuation of this Agreement after a merger or consolidation with

another corporation, shall be valid without the prior written approval of the Board of Directors. Failure to secure prior approval shall be just cause for termination.

11.8. **Counterparts.** This Agreement may be signed in counterparts. Electronic transmission of any signed original document, and retransmission of any signed electronic transmission, shall be the same as delivery of an original document.

11.9. **Survival.** All clauses of this Agreement which require performance beyond the termination date shall survive the termination date.

11.10. **Interpretation.** This Agreement has been submitted to the scrutiny of the Parties hereto and their counsel, if desired. In any dispute between the Parties, the language of this Agreement shall, in all cases, be construed as a whole according to its fair meaning. If any provision is found to be ambiguous, the language shall not be construed against the drafting Party. If any word, clause, sentence, or combination thereof for any reason is declared by a court of law or equity to be invalid, illegal, or unenforceable against one party or the other, then such finding shall in no way affect the remaining provisions of this Agreement.

11.11. **Entire Agreement.** This Agreement contains all of the understandings between the Parties. Each Party represents that no promises, representations, or commitments have been made by the other as a basis for this Agreement which have not been reduced to writing herein. No oral promises or representations shall be binding upon either Party, whether made in the past or to be made in the future, unless such promises or representations are reduced to writing in the form of a modification to this Agreement and executed by both Parties.

ASSOCIATION:

By: Daniel Tucker
Daniel Tucker (Feb 11, 2026 10:49:56 PST)
Name: Daniel Tucker
Title: President

Date: 02/11/2026

AGENT:

**WINDERMERE MANAGEMENT
BY EBRIGHT WIGHT, LLC.**

By: Brandye Hubbs
Name: Brandye Hubbs, CMCA, ASM
Title: Windermere Management Agent

Date: 02/10/2026

SCHEDULE 1

BASE MANAGEMENT FEE

The Base Management Fee for the Services performed during the initial period of the Agreement shall be: \$13 per lot per month or (95 lots) _(\$ 1,235.00) per month. The Agent shall propose any increase to the Base Management Fee for the Services as part of the Association's annual budget review and adoption process, and any increased Base Management Fee shall be approved upon adoption of the Association's budget.

This Agreement does not apply to management of individual rental units and personal Owner unit expenses.

SCHEDULE 2

ADDITIONAL FEES

The following Additional Fees shall be charged by the Association upon performance of any tasks or services not included as part of the Services compensated by the Base Management Fee:

Additional Fees

- An initial set-up fee for onboarding the Association into the Agent's systems upon commencement of this Agreement is charged, which will be equal to 1 months management fee 95 lots at \$13 per lot = \$1,235.00
- NSF or other dishonored negotiable instrument: \$35.00 per instrument;
- Ownership Transfer fee: \$100.00 (charged to the buyer on re-sale only);
- Resale Certificates: \$275.00 for standard completion (6-10 days) or \$375.00 for rush completion (1-5 days);
- Completing mortgage questionnaires: \$75 per page (billed to the mortgage company);
- Mileage is charged at the Washington State OFM Rate: 2025 Rate is \$0.70 per mile;
- Equipment, goods, or supplies purchased for the Association: Charged at Agent's cost plus 15% markup;
- Assistance with litigation: \$200 per hour (1 hour minimum);
- Additional Administrative Tasks: \$75 per hour (1 hour minimum);
 - Administrative tasks not included as part of the Services compensated by the Base Management Fee and subject to charge hereunder include, but are not limited to:
 - Reviewing archived files (not including trip charge to retrieve files);
 - Collection efforts beyond sending an account history/statement;
 - Preparing/issuing newsletters;
 - Preparing/sending informational mailings/postings;
 - Notice to comply letters exceed two (2) per month;
 - Special meeting preparations or attendant;
 - Website updates (unless specifically included in the Services); and
 - Composing meeting minutes (with or without attendance / minimum charge equal to two (2) hours).
 - Approve Payment plan monitoring and updates
 - Collection action monitoring and updates
 - HOA Demand/ Escrow questionnaire
 - WA State Corporate Annual Renewal – 1 time per year
 - Act as Registered Agent for Association – 1 time per year
 - Bill to owner letter for owner expense charges
 - ACC review for documents and correspondence – min 1 hour per Review

- Outside Windermere associated banking (requires deposits to be made at bank, adding additional travel and time for banking) – Per month
- Additional Management Tasks: \$125 per hour (1 hour minimum);
 - Management tasks not included as part of the Services compensated by the Base Management Fee and subject to charge hereunder include, but are not limited to:
 - On-site compliance inspections;
 - Posting notices / permits;
 - Arranging vehicle tows;
 - Insurance claim administration; and
 - One time project administration for non-routine maintenance
 - Additional meeting attendance.
 - Attendance to meetings on weekends or after 7pm
 - Attendance to meetings as contracted / hourly after 1.5 hours
- Additional Accounting Tasks: \$150 per hour (1 hour minimum);
 - Accounting tasks not included as part of the Services compensated by the Base Management Fee and subject to charge hereunder include, but are not limited to:
 - Custom financial report preparation;
 - Internal audit review;
 - Additional financial reports or summary of reporting review of prior management;
 - Bookkeeper attendance at meetings;
 - Loan/Special Assessment administration;
 - 1099 Processing
 - Special Assessment set up
- Special Project or Capital Project management: a negotiated percentage of the project's budget, which payment will include:
 - Conference calls for special or capital project planning and administration; and
 - Pre-construction and construction job walks or meetings.
 - Communication to owners
 - Maintenance online construction meeting minutes and field reviews

Assistance with Litigation - \$200 per hour / 1 hour minimum

The Agent shall be entitled to increase the Additional Fee schedule above by providing the Association ten (10) days' written notice.